Technology Transfer Overview

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INNOVATION ECOSYSTEM

COLLEGES & UNIVERSITIES

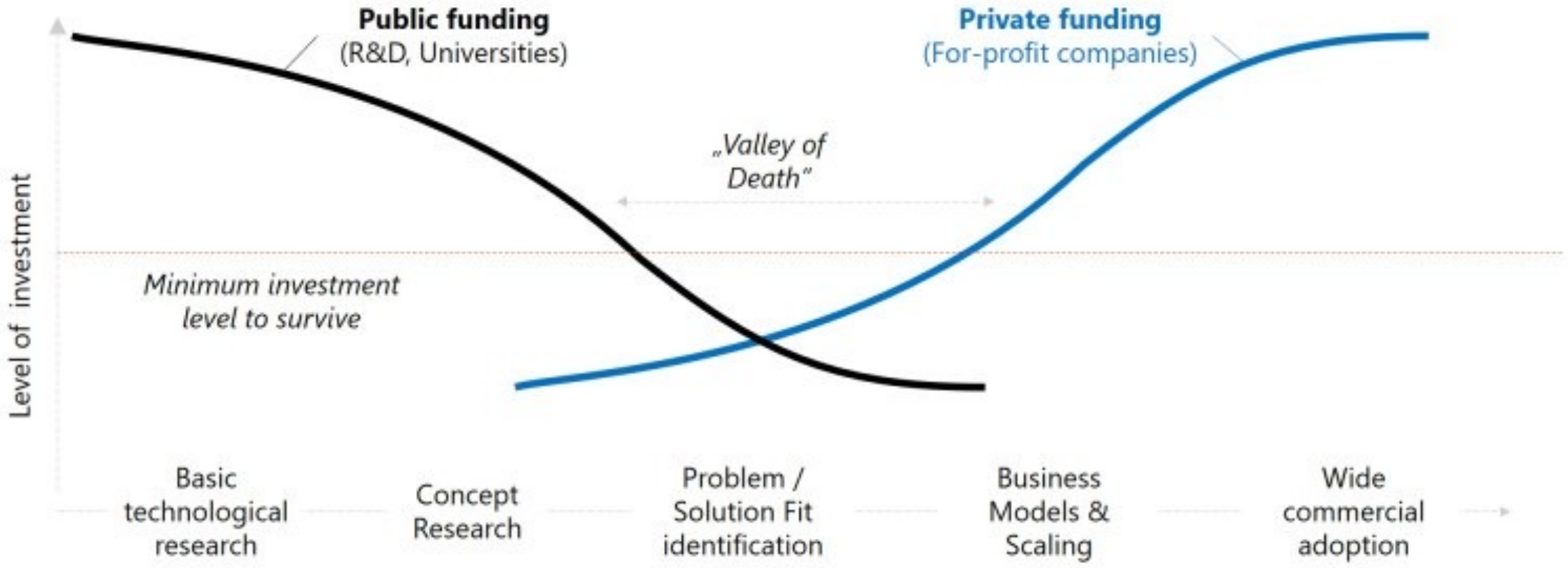
INDUSTRY

INVESTMENT & FUNDING

NON-GOVERNMENTAL ORGANIZATIONS

GOVERNMENT

Innovation Valley of Death



.. Invest to Intellectual Property

Technology Readiness Level

What is Technology Transfer?

Technology transfer, also called transfer of technology, is the process of transferring technology from the person or organization that owns or holds it to another person or organization.
(RA 10055)

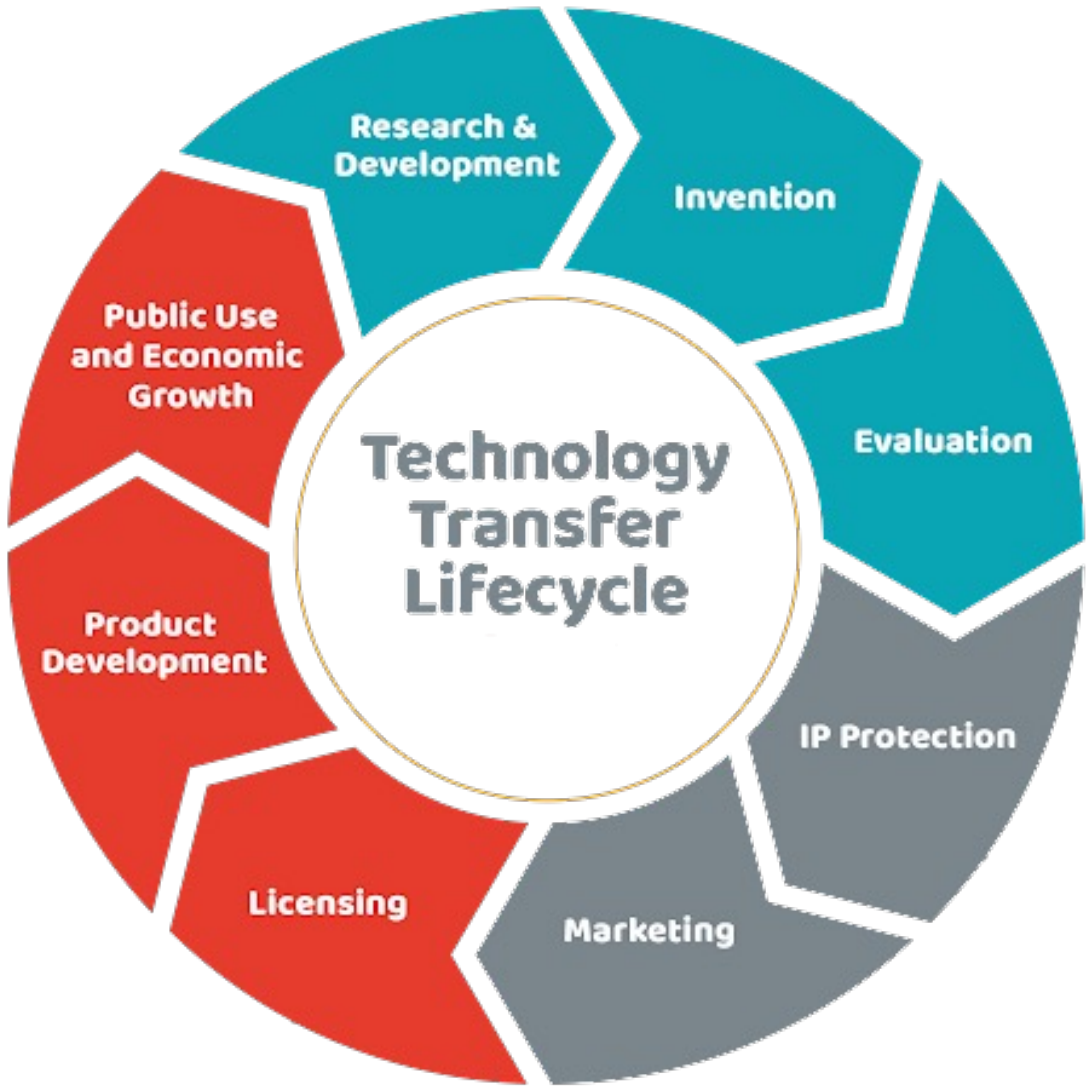
PROTECT

- ✓ Invention Disclosure
- ✓ Prior Art / Novelty Search
- ✓ Patent Search
- ✓ Patent Draft

COMMERCIALIZE

- ✓ IP Valuation
- ✓ Freedom to Operate
- ✓ IP Ownership and Grants
- ✓ Territory
- ✓ Licensing and Royalty Fee
- ✓ Return of Rights
- ✓ Research and Publishing Rights

- ✓ Financial Audit Report
- ✓ Performance Appraisal
- ✓ Product Quality Monitoring
- ✓ Impact Assessment



PROMOTE

- ✓ TRL Assessment
- ✓ Tech Matching
- ✓ Market Assessment
- ✓ Business Assessment
- ✓ IP Commercialization Plan

Technology Commercialization Modes

Licensing

Licensing is a contractual agreement between two parties, where one party (the licensor) grants the other party (the licensee) the right to use, produce, or sell a specific technology, product, or service in return of a royalty fee

Spin-Off

Newly found independent company designed to commercialize the product created from an Intellectual Property originally owned by a parent entity (e.g. University). The business creator of the spin-off firm can be someone from the parent entity (researcher, faculty, etc).

Direct-Sale

Selling and transferring the IP to a dedicated industry. IP Rights is transferred to the adopter. Commonly the sale is upfront

Joint Venture

A collaboration or business arrangement in which two or more parties agree to pool their resources to develop and commercialize IP assets. In short, they are partners in business

USTP IP Policy and Technology Transfer Protocol

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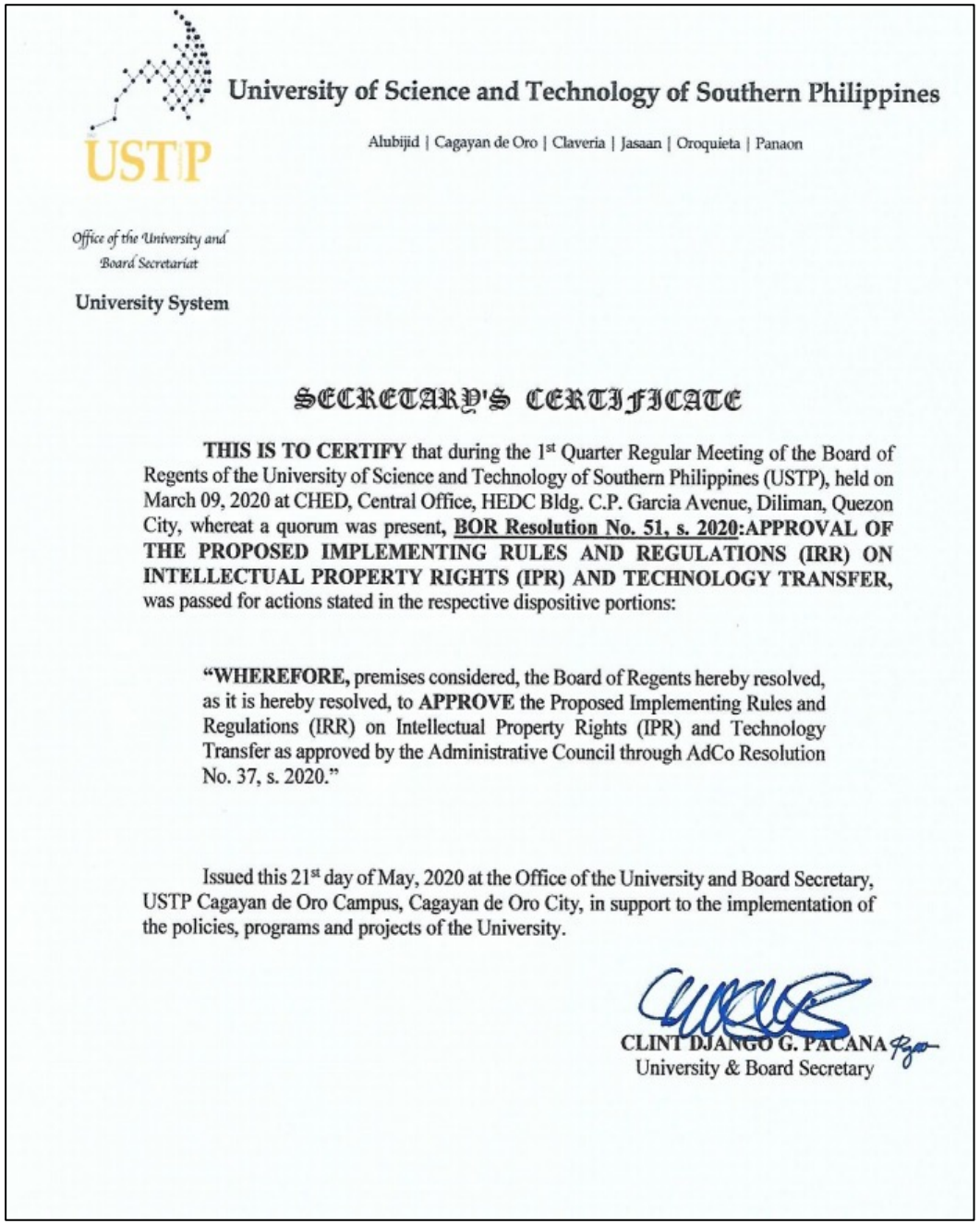
The USTP

IP Policy

Benefits and Incentives



University of Science and Technology of Southern Philippines

Alubijid | Cagayan de Oro | Claveria | Jasaan | Oroquieta | Panaon

USTP

Office of the University and Board Secretariat

University System

SECRETARY'S CERTIFICATE

THIS IS TO CERTIFY that during the 1st Quarter Regular Meeting of the Board of Regents of the University of Science and Technology of Southern Philippines (USTP), held on March 09, 2020 at CHED, Central Office, HEDC Bldg. C.P. Garcia Avenue, Diliman, Quezon City, whereat a quorum was present, **BOR Resolution No. 51, s. 2020:APPROVAL OF THE PROPOSED IMPLEMENTING RULES AND REGULATIONS (IRR) ON INTELLECTUAL PROPERTY RIGHTS (IPR) AND TECHNOLOGY TRANSFER,** was passed for actions stated in the respective dispositive portions:

"**WHEREFORE,** premises considered, the Board of Regents hereby resolved, as it is hereby resolved, to **APPROVE** the Proposed Implementing Rules and Regulations (IRR) on Intellectual Property Rights (IPR) and Technology Transfer as approved by the Administrative Council through AdCo Resolution No. 37, s. 2020."

Issued this 21st day of May, 2020 at the Office of the University and Board Secretary, USTP Cagayan de Oro Campus, Cagayan de Oro City, in support to the implementation of the policies, programs and projects of the University.

CLINT DJANGO G. PACANA
University & Board Secretary

CHAPTER 1

PART I
INTELLECTUAL PROPERTY POLICY

Chapter 1. Introduction

Section 1. Rationale. The Philippine Technology Transfer Act of 2009 (Republic Act No. 10055) took effect on May 8, 2010. Chapter IX of the Act's Implementing Rules and Regulations (IRR) requires that a Research and Development Institution (RDI) such as the University of Science and Technology of Southern Philippines (USTP) define its policy on intellectual property and lay down the institutional mechanisms for technology transfer activities. Likewise, it shall define the engagements with stakeholders including, but not limited to, other public RDls, private RDls, public and private higher education institutions (HEls), and technology adopters from the private sector.

Section 2. Declaration of Policies and Principles. The University fully recognizes that science, technology, and innovation are essential for national development and progress. It shall therefore give priority to research and development (R&D), invention, innovation, and their utilization. It shall also encourage the widest and most systematic participation of all stakeholders including marginalized groups like elderly, indigenous people, physically challenged, and women in policymaking

Section 3. Objectives. The University's IP Policy, in line with its mission to be one of the leading universities in science and technology, aims to to define the roles of the university in the ownership, protection and management, utilization, transfer and commercialization of IPs generated from government-funded R&D activities.

CHAPTER 2

Section 3. Coverage. This guideline shall cover the following:

(1) Persons Covered -- This policy shall apply to all innovation ecosystem partners such as industry partners, faculty, researchers, students and extension staff and visiting professors participating in any program, project, and contract or research activity which is funded wholly or in part by the Government.

(2) Matters covered -- These guidelines shall cover all researches, research contracts, tangible research properties or outputs with or without patent or copyright protection, whether for commercial and non-commercial purpose, undertaken using any university resource and including all technology transfer arrangements.

(3) Rights Covered – These guidelines shall cover all types of intellectual property rights enumerated under the Intellectual Property Code of the Philippines (Republic Act No. 8293) as follows: copyright and related

Chapter 3: Ownership of IP

- IPs and IPRs from R&D funded by GFA (wholly or partially) shall be vested in the university who performed the R&D (following IP & IPR protocols)
- **Copyrights** over any work derived/generated by university from government-funded activities shall be vested in the university whose researchers actually authored the work.
- Shared ownership of IPs & IPRs and revenues for R&D jointly done by Two or More RDIs (either funded by the RDIs or funded by GFA).
- Ownership of IPs and IPRs and Sharing of Revenues derived from work supported by Multiple Agencies
- Ownership of IP and sharing of Revenues derived from works of GFA Scholar

Chapter 3: Ownership of IP

- Assumption of Ownership Rights by the GFA:
  - If used by the government
  - Failure of the University to disclose
  - Failure to initiate IP protection (3) months from the public disclosure

Chapter 4: Role of GFA role in IP

- Monitoring and evaluation of IP Development (esp. GFA projects)
- Initiate confidential disclosures 3 months from the generation of technology or 6 months from the completion of the program
- Monitor licensing transactions initiated by the University for GFA projects (compliant to the Fairness Opinion Report recommended by the FOB)

Chapter : RDI IP Management

- Monitoring of IP Developments
- The University allows the research/employee to commercialize IP assets
- Researcher/employee are allowed to do publications of their work considering non-prejudicial disclosures

Benefits and Incentive

Approved Intellectual Property Rights. An incentive will be granted to the faculty who have an approved Intellectual Property Rights (IPR) from IPOPHIL as specified below:

IPR :	**Incentive***
Patent	P 75,000.00
Utility Model	P 25,000.00
Industrial Design	P 10,000.00
Patent for software	P 20,000.00

**subject to evaluation by the committee*

Thank you for listening!

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- IP Policy and Technology Transfer Protocol, University of Science and Technology of Southern Philippines, May 2020.